

assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

2. 8:31 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court continues this hearing to 4/23 at 9:00 a.m.

3. 8:31 AM CASE NUMBER: C25-02337
CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN
***FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION**
FILED BY:
TENTATIVE RULING:

Given the Motion to Intervene, this Case Management Conference will be continued to July 1, 2026 to trail the Motion set on calendar that date.

4. 8:31 AM CASE NUMBER: C25-01323
CASE NAME: ROSE LENNON VS. PAVILIONS MANAGEMENT, LLC
***FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION**
FILED BY:
TENTATIVE RULING:

5. 9:00 AM CASE NUMBER: C25-02823
CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court continues this hearing to May 7, 2026 at 9:00 a.m.

Law & Motion

6. 9:00 AM CASE NUMBER: C23-01524
CASE NAME: DENNIS BULLARD VS. APTIVE ENVIRONMENTAL, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**

FILED BY: BULLARD, DENNIS

TENTATIVE RULING:

Plaintiff Dennis Bullard moves for preliminary approval of his class action and PAGA settlement with defendant Aptive Environmental LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff Bullard on June 21, 2023 in Contra Costa County, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Coordination Plaintiff Kory Thornton filed a similar complaint in Sacramento County. Coordination procedures began in December 2024. Plaintiff Bullard seeks, through this process, to file a Second Amended Complaint adding Plaintiff Thornton as a named plaintiff and class representative, conditionally certify a settlement class, and preliminarily approve the settlement.

The settlement would create a gross settlement fund of \$3,750,00. The class representative payments to each plaintiff would be \$10,000. Attorney's fees would be \$1,312,500 (35% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator's costs will not exceed \$21,500. PAGA penalties would be \$200,000, resulting in a payment of \$150,000 to the LWDA and \$50,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$2,161,500. The fund is non-reversionary. Based on the estimated class size of 3,048, the average net payment for each class member is approximately \$709.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering all "all claims . . . or causes of action . . . arising out of the claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Actions and ascertained in the course of the Actions" (Settlement, Par. 5.2.) Under relevant appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469

F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Pursuant to *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, the Court will utilize the “fair, reasonable, and adequate” standard applicable to class actions in this PAGA settlement. (*Id.*, at 64.) The Court will assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

At final approval, the Court will be seeking additional information sufficient to understand the scope of the claims at issue, as the Complaint was not specific enough for the Court to evaluate the merits.

C. Attorney fees

Plaintiff seeks 35% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court notes that the proposed Class Notice contains reference to Department 39. That must be updated to Department 10 given the change in judicial officers presiding over this matter.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. 9:00 AM CASE NUMBER: C23-02732
CASE NAME: IVORYA GENEVE VS. MIKUNI RESTAURANT GROUP, INC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING: